

Court No. - 3

Case :- WRIT - C No. - 4553 of 2024

Petitioner :- Pravesh Singh

Respondent :- State Of U.P. Thru. Prin. Secy. Electricity
Deptt. U.P. Lko. And Others

Counsel for Petitioner :- Rajiv Kumar Bajpai

Counsel for Respondent :- C.S.C., Aprajita Bansal

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Brij Raj Singh, J.

Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Ms. Aprajita Bansal, learned counsel appearing on behalf of opposite parties no. 2 to 4/Madhyanchal Vidyut Vitran Nigam Limited.

This petition has been filed with the following main prayer:-

"To issue a writ, order or direction in the nature of mandamus commanding the opposite parties to restore the electricity connection in the house of the petitioner which is being delayed for one or the other reason."

It is the case of the petitioner that he has been handed over an exorbitant electricity bill of Rs. 1,38,379/- on 05.03.2021. When the petitioner approached the respondents to pay the bill, he has been told by the respondents that his bill is Rs. 5,80,040. The petitioner complained to the S.D.O. but nothing has been done in the matter. The Recovery Certificate has been issued for Rs.5,95,043/-.

Ms. Aprajita Bansal, learned counsel appearing for opposite parties no. 2 to 4, on the basis of instructions, says that the petitioner's meter is installed inside his house and he does not permit the meter reader to take the reading. A spot inspection was done by the authorized officers and the meter was removed and opened and the meter readings that has come out after such inspection has been taken into account to raise a bill of Rs.5,95,043/-. If the petitioner aggrieves and disputes the amount of electricity bill so generated, he has an appropriate remedy under Para-6.5 of the Electricity Supply Code.

Learned counsel for the petitioner prays that the petitioner may be allowed to deposit the amount in installments.

Ms. Aprajita Bansal has pointed out Para 6.14 of the Electricity Supply Code and says that if the petitioner approaches the Executive Engineer of the Division concerned with an appropriate application in this regard, the same may be considered and appropriate order be passed.

The writ petition is **disposed of** with a direction to the petitioner to approach the Executive Engineer of the Division concerned, who shall pass a reasoned and speaking order on the application, if any, made by the petitioner, as expeditiously as possible.

Order Date :- 22.5.2024

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